

ASCII MASTER FLOW – PANEL 1/12: Three emergencies and constitutional purpose

PART XVIII: ARTICLES 352-360

352 national security | 356 State constitutional breakdown | 360 financial stability

METHOD

trigger -> written advice/material -> parliamentary control -> duration -> effects -> exit

Emergency power preserves constitutional government; it is not an extra-constitutional regime.

MUST REMEMBER: Teach Articles 352-360 as three different regimes with exact triggers, approval periods, renewal, revocation, maximum duration, federal effects and rights consequences;
Articles 358 and 359 must never be merged.

ASCII MASTER FLOW – PANEL 2/12: Article 352 trigger, approval, renewal and revocation

TRIGGER: war | external aggression | armed rebellion | imminent danger

Cabinet decision in writing -> President -> whole or part of India

APPROVAL: both Houses within one month -> special majority

CONTINUANCE: six-month blocks -> same special majority

EXIT: President revokes; Lok Sabha simple-majority disapproval requires revocation

One-tenth of Lok Sabha members can require a special sitting within 14 days.

ASCII MASTER FLOW – PANEL 3/12: Declaration and amendment chronology with current status

1962 external aggression -> revoked 1968

1971 external aggression -> continued alongside 1975 proclamation

1975 internal disturbance -> revoked 1977

38TH: attempted satisfaction immunity

42ND: territorial and wider-effect changes

44TH: armed rebellion, Cabinet writing, special majority, liberty and review

CURRENT 28 AUG 2026: no National Emergency is in force.

ASCII MASTER FLOW – PANEL 4/12: National Emergency effects on federalism and institutions

ARTICLE 353: Union directions expand; Parliament gains State-field competence

ARTICLE 250 laws -> six-month tail after Emergency

ARTICLE 354 -> temporary revenue-distribution order with financial-year limit

LOK SABHA / ASSEMBLY TERMS -> Parliament may extend one year at a time

LIMIT

States, legislatures and High Courts continue: temporary Union weighting, not abolition.

ASCII MASTER FLOW – PANEL 5/12: Articles 358 and 359 rights firewall

ARTICLE 358

automatic | Article 19 only | war/external aggression | emergency-related recital/action

ARTICLE 359

presidential order | named rights' court-enforcement route | stated area/period

PERMANENT FIREWALL

Articles 20 and 21 remain enforceable; unrelated illegality gets no emergency shield.

ASCII MASTER FLOW – PANEL 6/12: ADM Jabalpur (1976), Khanna and K.S. Puttaswamy (2017)

ADM JABALPUR (1976) MAJORITY

denied habeas enforcement route during the operative Article 359 order

JUSTICE H.R. KHANNA -> liberty is not executive grace

44TH AMENDMENT -> Articles 20 and 21 excluded from Article 359

K.S. K.S. PUTTASWAMY (2017) -> ADM Jabalpur (1976) majority wrongly decided and overruled

Historical warning, not current law.

CLOSE DISTINCTION: The 44th Amendment replaced internal disturbance with armed rebellion, requires written Cabinet advice, protects Articles 20 and 21, narrows Article 358 to war/external aggression and creates the Lok Sabha revocation route; Article 356 still has its own six-month approval cycle.

ASCII MASTER FLOW – PANEL 7/12: President's Rule mechanics and consequences

ARTICLE 356: Governor report or otherwise -> objective material -> proclamation

APPROVAL: two months, simple majority | renewal: six months | maximum: three years

BEYOND ONE YEAR: qualifying Article 352 Emergency + ECI certification

ARTICLE 357: Parliament may confer and permit delegation of State legislative power

Executive assumed; Assembly suspended/dissolved; High Court and Fundamental Rights continue

Article 365 may supply material, never an automatic trigger.

ASCII MASTER FLOW – PANEL 8/12: S.R. Bommai (1994), Rameshwar Prasad (2006) and current Article 356 control

S.R. BOMMAI (1994)

review | relevant material | floor test | dissolution after approval | restoration | federalism

RAMESHWAR PRASAD (2006)

Bihar dissolution invalid; Assembly not restored because election process had advanced

WHY USE DECLINED

courts + coalitions + regional parties + Sarkaria/Punchhi norms

CURRENT: Manipur President's Rule 13 Feb 2025 -> revoked 4 Feb 2026.

ASCII MASTER FLOW – PANEL 9/12: Article 360 financial emergency

TRIGGER: financial stability or credit of India or any part threatened

APPROVAL: both Houses within two months by simple majority

DURATION: no periodic renewal; President may revoke

DIRECTIONS: financial propriety | salary reductions | State Money/financial Bills reserved

Union salary direction can include Supreme Court and High Court judges

STATUS: never proclaimed; 1991 was managed without Article 360.

ASCII MASTER FLOW – PANEL 10/12: Three-way comparison and last-resort alternatives

352: special majority | six-month renewal | national/federal/rights effects

356: simple majority | six-month renewal | three-year maximum | State machinery

360: simple majority | no renewal cycle | financial directions

ESCALATION LADDER

warning -> consultation -> floor test/court -> targeted ordinary law -> Emergency

Sarkaria and Punchhi recommendations guide restraint but are not binding law.

ASCII MASTER FLOW – PANEL 11/12: Six PYQs and Prelims firewalls

PYQ ROUTES

2018 Financial Emergency + Article 356 consequences

2020 centralising legislation | 2023 Article 355/detention/POTA + Article 356 decline

2024 Constitution-Part identification

FIREWALLS

armed rebellion != internal disturbance | 358 != 359 | 20/21 protected

352 special majority | 356/360 simple | 360 never used | High Court not assumed.

ASCII MASTER FLOW – PANEL 12/12: Marks-scaled answer spine and qualified verdict

10 MARKS: provision -> trigger -> procedure -> effects -> status/verdict

15 MARKS: thesis -> legal factors -> political factors -> case/commission -> verdict

20 MARKS: 352 + rights + 356 + 360 -> safeguards -> limits -> graded conclusion

EVIDENCE CHAIN

claim -> Article/amendment -> mechanism -> case/history -> qualification

VERDICT: emergency is legitimate temporary constitutional self-defence only when reviewable and directed toward restoration of ordinary democratic government.

LEGAL/SOURCE LIMIT: As of 5 September 2026 no National or Financial Emergency was located in force. The Gazette proclamation of 4 February 2026 revoked the Manipur Article 356 proclamation; retain S.R. Bommai (1994) review and floor-test discipline without converting every political crisis into constitutional breakdown.